

Amendment No. 1 to SB1172

Briggs
Signature of Sponsor

AMEND Senate Bill No. 1172

House Bill No. 686*

by deleting all language after the enacting clause and substituting:

SECTION 1. This act is known and may be cited as the "African American Cultural and Historical Grant Act."

SECTION 2. Tennessee Code Annotated, Title 4, Chapter 11, Part 1, is amended by adding the following new section:

(a) There is created within the state general fund a special account to be known as the African American cultural and historical grant fund. The purpose of the fund is to support capital projects at facilities in this state that highlight the contributions, culture, and history of African Americans.

(b) The Tennessee historical commission, hereinafter "commission," shall administer the fund.

(c) The fund is composed of money appropriated by the general assembly for the fund, and gifts, grants, and other donations received by the commission for the fund.

(d) Before funds may be appropriated by the general assembly for the fund, the general assembly must authorize the appropriation of such funds by means of a separate joint resolution.

(e) Subject to the availability of funds, the commission shall allocate and disburse grants to entities and facilities to effectuate this section. The commission shall establish and publish guidelines for applications, including eligibility, and the award of grants. Priority for grants must be given to projects that encourage the renovation of an existing facility in an area with great cultural significance, enhance the beauty or

aesthetic value of facilities named for significant African Americans, or restore facilities on the national register of historic places. Money in the fund may be used by the commission for program administration, marketing expenses, and program evaluation; however, such expenses must not exceed five percent (5%) of the total amount appropriated for the program in a fiscal year.

(f) The state treasurer shall invest moneys in the fund for the benefit of the fund in accordance with § 9-4-603. Interest accruing on investments and deposits of the fund must be credited to and remain part of the fund. Any unencumbered moneys and any unexpended balance of the fund remaining at the end of a fiscal year do not revert to the general fund, but must be carried forward until expended in accordance with this section.

(g) The commission shall submit an annual report to the finance, ways and means committees of the senate and the committee of the house of representatives with jurisdiction over subject matters pertaining to finance by March 1, 2026, and by March 1 of each subsequent year on the status of this program and the allocation of grant funds.

(h) The commission may promulgate rules necessary to effectuate this section. The rules must be promulgated in accordance with the Uniform Administrative Procedures Act, compiled in chapter 5 of this title.

SECTION 3. This act takes effect July 1, 2025, the public welfare requiring it.